

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Samrawit Tadesse	Team: Team # 7	CCRB Case #: 200702612	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Tuesday, 01/02/2007 11:00 PM, Thursday, 02/22/2007 12:00 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 7/2/2008	Precinct: 110
Date/Time CV Reported Fri, 02/23/2007 2:38 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Fri, 02/23/2007 2:38 PM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Michael Perez	27862	930939	110 PCT
2. SGT William Stiuso	00000	918368	110 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Thierry Nemorin	25982	934022	110 PCT
2. POF Vivian Alberty	03629	934378	110 PCT
3. POM Edgar Gomez	23107	930234	110 PCT
4. POM Christoph Bramwell	04858	932356	110 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT William Stiuso	Abuse: On January 2, 2007, Sgt. William Stiuso authorized the entry into § 87(2)(b)	A . Exonerated
B . POM Michael Perez	Force: On January 2, 2007, PO Michael Perez pointed his gun at § 87(2)(b) and § 87(2)(b)	B . Unfounded
C . POM Michael Perez	Abuse: On February 22, 2007, PO Michael Perez frisked § 87(2)(b) § 87(2)(b)	C . Exonerated
D . POM Michael Perez	Abuse: On February 22, 2007, PO Michael Perez searched § 87(2)(b) § 87(2)(b)	D . Unsubstantiated
E . POM Michael Perez	Abuse: On February 22, 2007, PO Michael Perez searched the car in which § 87(2)(b) § 87(2)(b) was an occupant.	E . Exonerated

Synopsis

On January 2, 2007, at approximately 11pm, § 87(2)(b) and his friend § 87(2)(b) were parked in front of his residence at § 87(2)(b) in Queens when he was approached by officers. § 87(2)(b) and § 87(2)(b) ran inside the residence with the officers giving chase. Officers, who were identified through this investigation as PO Michael Perez and PO Edgar Gomez, entered the building in pursuit of § 87(2)(b) and § 87(2)(b) (Allegation A). Unable to locate § 87(2)(b) PO Perez and PO Gomez exited the building and saw § 87(2)(b) yelling at their fellow officers from the 2nd floor apartment. § 87(2)(b) alleged that PO Perez scaled onto the 2nd floor balcony and pointed his gun at § 87(2)(b) (Allegation B) but eventually climbed back down. Two summonses were issued to the parked vehicle that § 87(2)(b) was sitting in.

On February 22, 2007, at approximately 9:15pm, § 87(2)(b) was driving along § 87(2)(b) and § 87(2)(b) in Queens when PO Perez stopped his vehicle. § 87(2)(b) alleged that PO Perez told him that the car smelled of marijuana and asked him to step out of the vehicle, which § 87(2)(b) did. § 87(2)(b) stated that PO Perez frisked him (Allegation C) and allegedly searched him (Allegation D). PO Perez told § 87(2)(b) to step to the rear of the vehicle and proceeded to search the front part of § 87(2)(b)'s vehicle (Allegation E). Nothing was recovered as a result of the frisk and search of § 87(2)(b) and the search of § 87(2)(b)'s vehicle. PO Perez issued § 87(2)(b) two summonses for moving violations.

It is recommended that Allegation (A) be exonerated § 87(2)(g). It is also recommended that Allegation (B) be unfounded § 87(2)(g). It is recommended that Allegation (C) and (E) be exonerated § 87(2)(g). It is also recommended that Allegation (D) be unsubstantiated § 87(2)(g).

Although Sgt. William Stiuso has since been promoted to lieutenant, he will be referred to as Sgt. Stiuso throughout this report because he was a sergeant at the time of the incident.

Summary of Complaint

§ 87(2)(b) *called the CCRB's Call Processing System on February 23, 2007 to file his complaint about the February 22, 2007 incident (enc. 7a-b). § 87(2)(b) provided a phone narrative on February 26, 2007 during which he filed a complaint about the January 2, 2007 incident (enc.8a). § 87(2)(b) was interviewed at the CCRB on March 14, 2007 about both incident dates (enc. 9a-k). § 87(2)(g)*

January 2, 2007 Incident:

On January 2, 2007, at approximately 11:30pm, § 87(2)(b) and his friend, § 87(2)(b) whose last name is unknown, had just pulled into his driveway at § 87(2)(b) in Queens, after coming back from dinner. § 87(2)(b) was driving and § 87(2)(b) was in the passenger seat. The driveway gate was closed so § 87(2)(b) could not park his car inside and ended up parking on the sidewalk and part of the street, thus blocking the pedestrian sidewalk. There was a red or champagne colored four door minivan with tinted windows double-parked in front of the house next door, which is located at § 87(2)(b) § 87(2)(b). § 87(2)(b) did not see any part of the van's license plate. § 87(2)(b) is a one-way street. § 87(2)(b) had never seen the van before and was scared that it was people trying to rob him so he and § 87(2)(b) quickly exited the vehicle. § 87(2)(b) explained that his neighborhood is bad and people get "cut" frequently. § 87(2)(b) and § 87(2)(b) walked to the front door of his house, and as § 87(2)(b) was unlocking the door, the van reversed in the direction of § 87(2)(b)'s house and the passenger side window rolled down partially. There were two people, a male and a female, seated in the van. PO1, the female who was seated in the passenger seat was identified through this investigation as PO Vivian Alberty, called "come here" and motioned for § 87(2)(b) to come to the van with her hand. As § 87(2)(b) was opening the door, § 87(2)(b) told him that PO Alberty got out of the van. § 87(2)(b) and § 87(2)(b) went into his house and § 87(2)(b) closed the glass front door. § 87(2)(b) stated that the officers in the red/champagne colored van tried to stop him but they never did.

§ 87(2)(b) and § 87(2)(b) went to § 87(2)(b)'s apartment on the second floor. § 87(2)(b) walked to the open front window, which is located in the living room, and looking outside onto § 87(2)(b). There were at least

ten police officers, three patrol cars, and the red/champagne colored unmarked van in front of the house. Four to six of the officers were dressed in uniform and the rest were in plainclothes. Upon further questioning, § 87(2)(b) stated that all the officers were dressed in uniform. § 87(2)(b) stated that he did not know the people in the red/champagne minivan were police officers until he looked out the window and saw that they had on uniforms. § 87(2)(b) heard the officers say that they were going to tow his car. PO Alberty, who was still below, asked § 87(2)(b) why he did not stop for her. Another male police officer, who remains unidentified, asked § 87(2)(b) why he did not stop for the police. § 87(2)(b) started to talk to the police from where he was standing in front of the window. § 87(2)(b) told PO Alberty that he did not know she was a police officer and asked the officers how they expected him stop for them when he did not know who they were. § 87(2)(b) told the officers, “You guys did it very unprofessionally, whatever you guys did to me. You did it very unprofessionally. That’s not right. You guys put no sirens. How the hell you gonna try to do that?” § 87(2)(b) asked the officers what they wanted from him.

One of the responding officers, whom § 87(2)(b) identified by name, was PO Michael Perez. While § 87(2)(b) was conversing with the officers, PO Perez, jumped on top of the second floor balcony. § 87(2)(b) did not know how PO Perez was able to climb the twenty feet distance between the ground and the balcony. § 87(2)(b) assumed that PO Perez used the metal gate, which is 6’ tall, under the balcony to get leverage to climb onto the balcony itself. Once PO Perez was on the balcony, he flashed his flashlight into the apartment and pointed his black gun at § 87(2)(b) and § 87(2)(b) § 87(2)(b) son, § 87(2)(b) who was standing in front of § 87(2)(b) who was three to four inches from the window. § 87(2)(b) s mother, § 87(2)(b) was also standing behind § 87(2)(b) in the living room. § 87(2)(b) showed PO Perez that he had his son, § 87(2)(b) in front of him and told him, “Shoot me. Shoot me.” § 87(2)(b) did not remember what PO Perez was saying but stated that they were both talking. Upon further questioning § 87(2)(b) stated that PO Perez was telling him to come down and he told him, “No, I’m not going nowhere. Come and get me.” § 87(2)(b) called PO Perez a “GI-Joe” and a rookie. PO Perez only had his gun pointed for two minutes before he put it away on his belt. Sgt. PO Perez, who was on the balcony for four to five minutes, pointed his flashlight into the apartment again and then climbed off the balcony. § 87(2)(b) stated that his friend, § 87(2)(b) was in the apartment when PO Perez was on the balcony with his gun pointed but was not sure if § 87(2)(b) was in living room.

§ 87(2)(b) stayed upstairs and heard officers enter the apartment building, which is actually a three-family house, and knock on his apartment door. They told him to come out but he did not open his apartment door. § 87(2)(b) explained that in order to gain entry to the building, one of the residents has to buzz you in and assumed one of the other residents in the building buzzed the police officers inside. The police went to every part of the building that had an open door, including the basement. § 87(2)(b) stated that the basement holds the laundry facilities that only he and his family have access to. § 87(2)(b) s father, § 87(2)(b) § 87(2)(b) owns the entire building. § 87(2)(b) stated that he never actually saw the police search the building but his brother, § 87(2)(b) told him that they did. The other officers on the ground told § 87(2)(b) that they wanted to see the paperwork on his car and wanted the owner of the car that § 87(2)(b) had just parked to come downstairs or it was going to be towed. § 87(2)(b) s brother, § 87(2)(b) who is the owner of the car went downstairs and showed the officers the car’s paperwork. § 87(2)(b) stated that he did not go downstairs because he did not want to talk or have anything to do with the officers. § 87(2)(b) stated that his brother, § 87(2)(b) spoke to PO Perez and described him as being an “asshole.” By the time § 87(2)(b) was downstairs, PO Perez had climbed off the balcony.

§ 87(2)(b) saw his brother, § 87(2)(b) open the front driver side door of the car, reach in and open the glove compartment. § 87(2)(b) indicated that two male officers searched the car, but upon further questioning § 87(2)(b) stated that the officers only looked inside the car from where they were standing behind § 87(2)(b) who was still getting the paperwork to the car. Neither officer put any part of their body in the car. § 87(2)(b) overheard the two male officers saying that the car smelled like marijuana. § 87(2)(b) gave the officers the car’s paperwork, they checked it, and the car came back “clean.” Nobody was arrested but § 87(2)(b) was issued two summonses for blocking a driveway and parking vehicle on pedestrian sidewalk. The police officer who wrote the summonses left the two tickets on the car window. Right afterwards, all the officers left. § 87(2)(b) stated that the officers were being “dicks” because they knew that his car was not stolen and just wanted to harass him.

§ 87(2)(b) described PO Albery as a white, Italian, female, 5'8" to 5'9", with long brown hair in pony tail, 190-200lbs, dressed in uniform, in her early 30s and the only female on the scene. PO Perez was a white male, 6', had short blondish brown hair, 190lbs, in his early thirties, with light colored eyes, and dressed in uniform. § 87(2)(b) told § 87(2)(b) that he saw PO Perez's name when he talked to him downstairs. § 87(2)(b) stated that the same black officer, who was identified through this investigation as PO Christopher Bramwell, who was on the scene for the February 22, 2007 was also present during the above incident. PO Bramwell was a black, male, "fat donut eating guy," had short hair, 5'9", and weighed 220-240lbs.

All the officers who were on the scene were from the 110th Precinct. § 87(2)(b) could not provide a description of any of the other officers on the scene during the incident other than PO Perez and PO Albery. § 87(2)(b) did not know § 87(2)(b)'s last name or have a phone number for him. § 87(2)(b) only knew that § 87(2)(b) lives in § 87(2)(b).

February 22, 2007 Incident:

On February 22, 2007, at approximately 9:14pm, § 87(2)(b) was taking his son, § 87(2)(b) to McDonalds from his residence, which is located at § 87(2)(b) in Queens. § 87(2)(b) had his § 87(2)(b) son seated in a child seat in the back seat of the car. § 87(2)(b) was driving his brother's, § 87(2)(b) 2003 gray BMW X5 through § 87(2)(b) in Queens when he noticed a 12-passenger red/maroon van in front of him. Later in the interview § 87(2)(b) stated that he was driving a Jeep. The street light was turning yellow and the red van moved to the far-left side of § 87(2)(b). § 87(2)(b) passed the red/maroon van on the right side, because he did not know if the red/maroon van was going to make a turn or stay in the lane, and made a right onto § 87(2)(b). § 87(2)(b) stated that the street light was yellow when he made the right turn onto § 87(2)(b). § 87(2)(b) explained that when he "ate the light it was yellow but turning into red." When § 87(2)(b) arrived at § 87(2)(b) and § 87(2)(b), the red/maroon van, which had lights and sirens on the dashboard, pulled him over. § 87(2)(b) saw two people in the red/maroon van that pulled up behind him. PO1, who was identified through this investigation as PO Michael Perez, was the driver and PO2, who was identified through this investigation as PO Christopher Bramwell, was the passenger. PO Perez and PO Bramwell both exited the van at the same time.

PO Perez walked over to the driver side of § 87(2)(b)'s vehicle and told § 87(2)(b) to turn the engine off, which he did. PO Bramwell was on the passenger side of the vehicle. § 87(2)(b)'s driver side window was open all the way. As soon as PO Perez saw § 87(2)(b) he asked him, "Don't I know you from somewhere?" § 87(2)(b) told PO Perez that he did not know him from anywhere and did not know what he was talking about. PO Perez asked § 87(2)(b) "Aren't you that kid from § 87(2)(b)?" § 87(2)(b) asked PO Perez how he knew where he was from and PO Perez replied that he remembered § 87(2)(b). PO Perez asked § 87(2)(b) "How come you didn't stop for us last time? How come you stopped now? People have fake badges, [PO Perez showed § 87(2)(b) his badge] people have fake sirens. People buy it." § 87(2)(b) became scared because it looked like PO Perez had "something" against him. § 87(2)(b) indicated that PO Perez was "talking shit" to him. § 87(2)(b) told PO Perez that he stopped because he saw that they had their sirens on and that that was the proper way to stop a car. PO Perez told § 87(2)(b) "You're going to call them people again?" or "some shit like that." § 87(2)(b) did not remember exactly what PO Perez said but he did know it was in regards to the CCRB [It should be noted that § 87(2)(b) had not yet filed a complaint with the CCRB at the time]. § 87(2)(b) indicated that PO Perez was "talking shit to him." PO Perez opened the driver side door and asked § 87(2)(b) to step out of the vehicle. Initially § 87(2)(b) indicated that PO Perez pulled him out of the car but upon further questioning, § 87(2)(b) stated that he stepped out of the car on his own, without PO Perez having to use force. § 87(2)(b) did not say anything as he was getting out of his car.

PO Perez asked § 87(2)(b) if he had anything on him. Upon further questioning, § 87(2)(b) stated that as soon as PO Perez got to the car, he told § 87(2)(b) that he smelled marijuana and could see a "roach" in the car's astray. § 87(2)(b) stated that he was not and had not been smoking marijuana in the vehicle and there were no marijuana remnants in the car. § 87(2)(b) explained to PO Perez that the little flakes that came out of a cigarette butt were in his ashtray. PO Perez searched § 87(2)(b) who was standing right next to the driver side, and he did not find anything. First, PO Perez lifted the hoodie that § 87(2)(b) was wearing slightly above the bellybutton so that § 87(2)(b)'s waistband was clearly visible. PO Perez pulled § 87(2)(b)'s waistband out and jiggled it back and forth. § 87(2)(b) explained that when PO Perez pulled his waistband, PO Perez's fingers were very close to his penis but actually never made contact. PO Perez then frisked § 87(2)(b)'s sides and pants pockets. PO Perez

searched the two front pockets then the two rear pockets of § 87(2)(b)'s jeans. Nothing was recovered as a result of the frisk and search, which lasted approximately five minutes.

PO Perez told § 87(2)(b) to stand by the trunk of the BMW. PO Bramwell was standing next to § 87(2)(b) "talking shit" on a cell phone. § 87(2)(b) did as such and stayed on the driver side of the truck. PO Perez searched the front driver and passenger side of the vehicle by looking on the side of the doors, under the seats, and opened the glove compartment. PO Perez also searched the ashtray in the front of § 87(2)(b)'s car as well as the center console. There was nothing found as a result of the car search. § 87(2)(b) stated that PO Perez did not search any other part of the vehicle, only the front part. § 87(2)(b) then explained that he was "sure PO Perez searched the whole car," including the rear seat of the car.

§ 87(2)(b) was stopped for twenty-five to thirty minutes. PO Bramwell was on the phone for the most part and did not say or do anything. Initially § 87(2)(b) stated that PO Bramwell did not participate in the vehicle search but then indicated that he thinks PO Bramwell searched his car as well although he "didn't remember too well." No additional police officers responded to the location.

PO Perez saw that § 87(2)(b) had his § 87(2)(b) son, § 87(2)(b) in the back seat while searching the car. PO1 told § 87(2)(b) that he did not have a child seat for his son. PO Perez issued § 87(2)(b) a summons for that offense even though § 87(2)(b) stated that he did have his son in a child seat. § 87(2)(b) explained that because the car windows had dark tints, PO Perez could not see the child seat.

Nothing was recovered as a result of the car search. When PO Perez did not find any "drugs or anything illegal that he could find" he gave § 87(2)(b) two summonses "out of anger" and "in retaliation." § 87(2)(b) mentioned that his only violation was "eating a red light." § 87(2)(b) was issued a summons for passing a red light and not having a child seat. PO Perez went back to the van with PO Bramwell after getting § 87(2)(b)'s license and registration and wrote the two summonses while § 87(2)(b) got back in his car and waited. Once § 87(2)(b) saw the summonses he was issued were written by PO Perez he realized that it was indeed the same officer who jumped on his balcony during the January 2, 2007 incident and remembered that he was in uniform during the previous incident.

Results of Investigation

Attempts to contact § 87(2)(b) § 87(2)(b) and § 87(2)(b) Between April 12, 2007 and April 25, 2007, two phone calls were made to § 87(2)(b) and three phone calls were made to § 87(2)(b) § 87(2)(b) never called the CCRB but § 87(2)(b) was ultimately uncooperative with the investigation. § 87(2)(g)

Officer Identification:

PO Michael Perez was identified by the summonses he issued to § 87(2)(b) on February 22, 2007 (enc. 21a). § 87(2)(b) remembered that PO Perez was one of the officers who was present during the January 2, 2007 incident. PO Perez provided the names of PO Edgar Gomez, Sgt. William Stiuso, PO Vivian Alberty, and PO Christopher Bramwell during his CCRB interview. PO Thierry Nemorin was identified from the summonses he issued § 87(2)(b) for the January 2, 2007 incident.

Summonses issued to § 87(2)(b) by PO Thierry Nemorin (enc. 11a-c):

Summons number § 87(2)(b) was for parking in front of a driveway. Summons number § 87(2)(b) was for parking a vehicle on a sidewalk.

Officer Statements for January 2, 2007 Incident:

PO Thierry Nemorin was interviewed at the CCRB on June 6, 2007 (enc. 12a-b).

On January 2, 2007, PO Nemorin worked from 5:30pm to 2:05am. PO Nemorin was assigned to the Community Policing Unit of the 110th Precinct and was working by himself. PO Nemorin was dressed in uniform and was assigned to a marked scooter.

PO Nemorin had no memo book entries regarding this incident (enc. 11a-c).

PO Nemorin was driving his scooter when Sgt. William Stiuso flagged him down in front of § 87(2)(b). The sergeant directed PO Nemorin to write summonses for a vehicle parked at the location but did not tell him what kind of summonses to write. PO Nemorin saw that the vehicle was parked halfway in the driveway and halfway on the sidewalk so he issued two summonses to the vehicle for blocking a sidewalk and parking on the sidewalk. PO Nemorin left the two summonses on the car's front windshield. PO Nemorin stated that Sgt. Stiuso did not tell him the name of the car's owner. There was nobody in the vehicle and PO Nemorin did not know to whom the vehicle belonged. PO Nemorin stated that he did not recognize the name § 87(2)(b).

PO Nemorin saw more than three officers standing around the responding police vehicle at the scene. PO Nemorin saw the second floor residents of the building screaming, "Fuck you," and several other profane words to the officers who were standing in front of the building. PO Nemorin did not remember any of the officers cursing in reply. PO Nemorin did not know any of the names of the officers who were on the scene other than Sgt. Stiuso.

PO Nemorin stated that he did not see any officers enter § 87(2)(b) and never saw any officer jump from the ground up to the second floor of the building. PO Nemorin stated that he never saw any officers draw their guns or point their guns at any of the individuals who were yelling from the second floor of the building. PO Nemorin stated that he never interacted with any civilians on the scene or searched the vehicle he issued the summons to. PO Nemorin stated that he was on the scene for five minutes.

PO Christopher Bramwell was interviewed at the CCRB on June 18, 2007 (enc.20a-c).

On January 2, 2007 PO Bramwell worked from 1600hrs to 0035hrs. He worked on the SNEU team with PO Michael Granahan, PO Ronak Patel and PO Paul Scocca. They were in uniform and in an unmarked van number § 87(2) PO Bramwell was sitting in the back seat.

PO Bramwell had no memo book entries regarding this incident (enc. 19a-1c).

PO Bramwell received a transmission from his sergeant, who was identified through this investigation as Sgt. William Stiuso, that he needed back up for a vehicle stop in which the driver who was in the vehicle ran inside his house. It took the officers a couple of minutes from when they received the radio call and when they arrived on scene. PO Bramwell saw Sgt. Stiuso and some other officers talking to a male, who was identified through this investigation as § 87(2)(b) on the second floor. § 87(2)(b) said he was not coming down and he was being uncooperative. Sgt. Stiuso was asking § 87(2)(b) who was outside the second floor window, "Why did you run? Come back down the stairs." § 87(2)(b) said, "No I am not coming down."

The conversation went on for a couple of minutes; an officer, who remains unidentified, went up the stairs and went to talk to him. Sgt. Stiuso told PO Bramwell to go around the back of the building to secure the area. PO Bramwell was there for about 5 minutes and he did not observe anything. He did not know where PO Granahan, PO Patel or PO Scocca was at that time. Sgt. Stiuso told the individuals in the building that if someone didn't come down, then the car was going to be towed. § 87(2)(b)'s brother, § 87(2)(b) came down and said, "Sorry, my brother is an idiot. He doesn't want to come down, but it's my car." § 87(2)(b) brought down the paperwork for the car and showed it to the officers. PO Bramwell suspects that § 87(2)(b) got a summons. PO Bramwell did not see any officer scale up to the 2nd floor window where § 87(2)(b) was. PO Bramwell denied that any officers drew their weapons or pointed their guns at the individuals on the 2nd floor. PO Bramwell and his fellow officers were at the location for approximately 15 to 20 minutes. The car that § 87(2)(b) said was his was parked on the sidewalk. PO Bramwell never encountered § 87(2)(b) before this incident.

The other officers that were on the scene were PO Michael Perez and PO Edgar Gomez.

PO Edgar Gomez was interviewed at the CCRB on June 15, 2007 (enc. 18a-c).

On January 2, 2007, PO Gomez worked from 4pm to 12:35am on January 3, 2007. PO Gomez was assigned to the SNEU team with Sgt. Williams Stiuso, PO Michael Perez and PO Vivian Alberty in uniform. PO Gomez was assigned to an unmarked van, #§ 87(2). PO Gomez and PO Perez were seated in one of the rear seats, PO Alberty, who is Hispanic, was the operator, and Sgt. Stiuso was the recorder.

PO Gomez read his memo book entries regarding the incident (enc. 17a):

2315: (ran into § 87(2)(b))

PO Gomez and his partners were driving down § 87(2)(b) and were at the intersection of § 87(2)(b) when PO Gomez and his partners noticed a vehicle parked partially in a driveway and partially in the street. The vehicle was blocking pedestrian traffic on the sidewalk as well as partially blocking vehicular traffic. PO Alberty had to drive around the vehicle in order to continue driving along § 87(2)(b). There were two individuals in the vehicle. Sgt. Stiuso told PO Alberty to park the van and made the decision to stop and inquire about the car parking. All the officers exited their van and started approaching the parked vehicle. The passenger of the parked vehicle, who was identified through this investigation as § 87(2)(b) was halfway out of the car. PO Gomez did not see what § 87(2)(b) was doing but he observed § 87(2)(b) fumbling around under the front passenger seat and by the center console. Sgt. Stiuso noticed that the driver of the vehicle, who was identified through this investigation as § 87(2)(b) and § 87(2)(b) looked young. One of the officers with PO Gomez said, "Police. We'd like to talk to you." As soon as § 87(2)(b) and § 87(2)(b) saw PO Gomez and his partners, § 87(2)(b) exited the vehicle and they quickly ran into § 87(2)(b) through the front door. PO Gomez and his partners were ten to fifteen feet away from the parked car when § 87(2)(b) and § 87(2)(b) ran into the building. PO Gomez and his partners started to run after § 87(2)(b) and § 87(2)(b) but § 87(2)(b) slammed the door shut in the officers' faces and locked the door. PO Gomez and Sgt. Stiuso knocked on the front door but § 87(2)(b) and § 87(2)(b) who were looking through the glass part of the front door, laughed at PO Gomez and Sgt. Stiuso.

PO Gomez and PO Perez walked to the rear of the building and found a rear door that was ajar. The open door had a stairway which led to a common lobby, five feet away from the rear entrance. PO Gomez did not remember if there was a laundry room in the building and stated that neither he nor PO Perez searched the building's laundry room. PO Gomez and PO Perez entered the building and went to the front door. They opened the door and let in Sgt. Stiuso. The building was a three family residence and there was one apartment on each floor. PO Gomez, PO Perez, Sgt. Stiuso, and the other officer knocked on the apartment located on each of the three floors but there was no response and nobody came out of the apartments. There was a male in the second floor hallway but when PO Gomez asked him if he had seen anybody running upstairs the male just replied that he was leaving. PO Gomez did not know if the male in the hallway was a resident of the building but he got the impression that the male did not want to get involved. PO Gomez, Sgt. Stiuso, and PO Perez exited the building through the front door two to three minutes after entering and went to the front of the building. There were additional units from the 110th Precinct in front of the building when PO Gomez, Sgt. Stiuso, and PO Perez exited. The backup officers were in uniform but PO Gomez did not remember the number of units or officers on the scene. PO Gomez did not know who called for backup.

When they got to the front, a number of people were looking out the window on the second floor. They were yelling, screaming, and cursing at PO Gomez and the other officers to "get out of here" and "get off my property." The people on the second floor were very angry. PO Gomez saw that § 87(2)(b) was one of the people who was yelling and cursing from the second floor apartment. There is a balcony on the second floor and the third floor of the building. The distance between the ground and the second floor balcony is eight to ten feet. PO Gomez stated that no officers on the scene ever climbed onto the second floor balcony or pointed their guns at the occupants of the second floor apartment. PO Gomez stated that none of the officers on the scene ever drew their guns. Sgt. Stiuso asked who owned the vehicle that was sticking out into the street. Nobody claimed the car so Sgt. Stiuso told the people on the second floor that the car was going to be towed if somebody did not claim the car. The conversation between Sgt. Stiuso and the people in the second floor apartment lasted six to eight minutes. A couple of minutes after Sgt. Stiuso mentioned that the car would be towed if nobody claimed it, a male exited the building and explained to the officers that he was § 87(2)(b)'s brother. § 87(2)(b) talked to Sgt. Stiuso and explained that § 87(2)(b) was a "knucklehead." § 87(2)(b) and Sgt. Stiuso walked slightly to the side and spoke privately but PO Gomez overheard § 87(2)(b) tell Sgt. Stiuso that the vehicle in the driveway was his and that he would never lend it to § 87(2)(b) again. § 87(2)(b) apologized to Sgt. Stiuso. PO Gomez, who was standing on the sidewalk by where § 87(2)(b)'s parked car was when he overheard the conversation between § 87(2)(b) and Sgt. Stiuso, smelled a strong odor of marijuana coming from the parked car. PO Gomez did not know if the windows of the vehicle were open or closed. The vehicle was never searched. Two summonses were issued to the car by an officer, who was identified through this investigation as PO Thierry Nemorin. § 87(2)(b) never came out of the building again.

PO Michael Perez was interviewed at the CCRB on June 4, 2007 (enc.16a-c).

PO Perez worked from 4pm on January 2, 2007 to 12:35am on January 3, 2007. PO Perez was assigned to the 110th Precinct's SNEU team which entails patrolling the precinct for narcotics. PO Perez was working with Sgt. William Stiuso, PO Vivian Alberty and PO Edgar Gomez in uniform. There were other people PO Perez was working with but he did not remember their names. PO Perez was assigned to an unmarked blue Dodge minivan. PO Perez was seated in the last row of the van but he did not remember where PO Gomez and Sgt. Stiuso were sitting in the vehicle.

PO Perez had no memo book entries regarding the incident (enc. 15a-c).

PO Perez and his partners were driving down § 87(2)(b) when they observed a silver BMW X5 that was parked halfway blocking the street and blocking all of the pedestrian sidewalk. There were two young men, between the ages of eighteen and nineteen, crouched inside the vehicle, which was parked and had no lights on. The passenger of the vehicle, who was identified through this investigation as § 87(2)(b) was standing outside but was bending inside the car while the driver, who was identified through this investigation as § 87(2)(b) was sitting inside the car. PO Perez could not see what § 87(2)(b) was doing at this point. As the van PO Perez was in drove past the parked vehicle, which was less than five feet away, somebody in the front seat smelled an odor of marijuana. The driver of the van drove around the jutting rear of the BMW and stopped the vehicle and reversed to where the BMW was parked to investigate the marijuana odor. § 87(2)(b) closed the front passenger door and was standing on the sidewalk and § 87(2)(b) was exiting the car. PO Perez and his partners exited out of the van last since they were in the rear seats. Sgt. Stiuso said, "Police, don't move. Can you come over here for a second?" § 87(2)(b) and § 87(2)(b) looked at them and ran into § 87(2)(b) which is a three family residential building. One of PO Perez's partners was right behind the last person who ran into the building but § 87(2)(b) slammed the front door in the officer's face. PO Perez, who was five to ten feet away from the door, saw § 87(2)(b) and § 87(2)(b) look out from behind the glass of the door and laughed at the officer they closed the door on. The males turned off the hallway light, closed the wooden door of the building, and went upstairs.

PO Gomez and PO Perez went to the rear of the building in case the two males were attempting to exit through the back. The back basement door was open so PO Perez pushed it open further and entered the building through the basement. PO Perez and PO Gomez never searched the basement of the building or any other part of the building. PO Perez and PO Gomez went to the 2nd floor since they had seen § 87(2)(b) and § 87(2)(b) run upstairs. There was a male neighbor talking to a person inside the apartment through a slightly open apartment door. PO Perez asked the male if it was his BMW parked outside and the male replied that it was "theirs" while pointing to the 2nd Floor apartment door. PO Perez walked up to the door and told the person by the door, "Listen, just come outside and talk to us" but the person closed the door again immediately after he saw PO Perez and PO Gomez. PO Perez and PO Gomez exited the building two minutes after entering and went back to the front of the building. PO Perez saw that there were additional marked and unmarked units on the scene from the 110th Precinct. There were approximately ten officers on the scene, three vehicles, and one police scooter. PO Perez remembered that backup was requested by one of his partners before he and PO Gomez went to the back of the building. One of the additional units on the scene may have been another SNEU team from the 110th Precinct.

§ 87(2)(b) was yelling and cursing at PO Perez and his partners from the 2nd floor window. § 87(2)(b) threatened to have the officers fired and "have [their] job." § 87(2)(b)'s mother, who was identified through this investigation as § 87(2)(b) and § 87(2)(b) were huddled around the window and were saying the same things as § 87(2)(b). PO Perez did not see any young boy by the window. One of PO Perez's partners asked § 87(2)(b) to come downstairs and to identify who owned the car but § 87(2)(b) refused both requests. § 87(2)(b)'s brother, who was identified through this investigation as § 87(2)(b) came downstairs and told Sgt. Stiuso that the vehicle belonged to him. § 87(2)(b) said to the officers that § 87(2)(b) was "stupid for running and had no reason to run. He has a marijuana problem. He smokes marijuana all the time and he has a bad habit. That's probably why he ran." § 87(2)(b) was still yelling and cursing from the second floor balcony while § 87(2)(b) was speaking to the officers but never came back downstairs. PO Perez never climbed on the 2nd floor balcony of the building and never drew or pointed his gun at the people who were standing in front of the 2nd floor window. None of the officers on the scene ever drew their guns. PO Perez's gun is silver and he does not own a black gun. § 87(2)(b) was issued two summonses for obstructing the street and the sidewalk but PO Perez did not know who actually wrote the summonses.

Sgt. William Stiuso was interviewed at the CCRB on June 11, 2007 (enc. 14a-c).

On January 2, 2007, Sgt. Stiuso worked with PO Michael Perez, PO Edgar Gomez, and PO Vivian Alberty from the 110th Precinct SNEU team. Sgt. Stiuso, PO Perez, PO Gomez, and PO Alberty were all dressed in uniform. Sgt. Stiuso was the SNEU supervisor and was assigned to an unmarked van. Sgt. Stiuso worked from 4pm to 1:57am on January 3, 2007.

Sgt. Stiuso had no memo book entries regarding the incident (enc. 13a-c).

Sgt. Stiuso and his SNEU officers were observing a drug prone location when Sgt. Stiuso observed a white or silver SUV pull onto a sidewalk and block the street. Half the car was on the sidewalk and the other half was in the street. Pedestrians would have to walk into the street to walk around the SUV. Sgt. Stiuso observed the driver of the vehicle, a white Hispanic male, who was identified through this investigation as § 87(2)(b) and the passenger, a black male who remains unidentified, exit the vehicle. Sgt. Stiuso noticed that § 87(2)(b) appeared to be very young and did not look old enough to have a license. Sgt. Stiuso assumed that § 87(2)(b) was an unlicensed operator. The van that Sgt. Stiuso was in was fifteen feet ahead of where § 87(2)(b) had parked his car. Sgt. Stiuso and the SNEU officers started approaching § 87(2)(b) and the person who exited the SUV with him because they had witnessed them committing a traffic violation and § 87(2)(b) appeared to be too young to be a licensed operator. Sgt. Stiuso explained that it was a “common-law right of inquiry” to make sure that § 87(2)(b) had a license. The driver of the van pulled over to the right and Sgt. Stiuso and his officers exited the van. They started walking slowly towards § 87(2)(b) when he saw them. § 87(2)(b) then turned away from the officers very quickly and turned to his passenger. § 87(2)(b) said something to him, turned back around looked at the officers, and then they both ran into § 87(2)(b) a three-story residential building, which was ten feet away. Sgt. Stiuso did not hear what § 87(2)(b) said and did not see what the passenger looked like. Sgt. Stiuso explained that their level of suspicion was higher so he, PO Perez, PO Gomez, and PO Alberty ran after § 87(2)(b) and his friend but § 87(2)(b) slammed the door and locked it behind him. Sgt. Stiuso saw § 87(2)(b) and the male run into the building while looking at him and his officers through the glass pane window of the door that § 87(2)(b) had locked. § 87(2)(b) and the male he was with cursed at Sgt. Stiuso and his officers. One of the males smiled at Sgt. Stiuso and his officers and went upstairs. Sgt. Stiuso called on the radio for another police car to come to the location.

Sgt. Stiuso did not know if § 87(2)(b) lived in the building, if they were trespassing, or if the SUV was stolen so Sgt. Stiuso, PO Perez, and PO Gomez went to the back of the building that § 87(2)(b) and his friend ran into and found an open door that led to a “common-law” hallway that led to the first floor apartment. Sgt. Stiuso made the decision to enter the building and all three entered the common hallway and knocked on the door of the 1st floor apartment. Sgt. Stiuso explained that there was one apartment per floor and so his officers went to all three floors, using the lone staircase in the building, and knocked on the doors. None of the residents came to their doors or opened their door but the officers heard noise coming from the second floor apartment. Sgt. Stiuso and his officers never entered the apartment or attempted to enter. When they knocked on the door, the residents inside the second floor apartment started to curse at the officers and were taunting them. The residents were saying “fuck you” along with other remarks that Sgt. Stiuso did not remember. Sgt. Stiuso told the 2nd floor apartment residents that if it was their car outside to come out with their license since the car was blocking the sidewalk. The 2nd floor apartment residents did not answer. Sgt. Stiuso, PO Perez, and PO Gomez did not have a search warrant so they exited the building after only being inside for two minutes.

Sgt. Stiuso, PO Perez, and PO Gomez went back to the front of the building, where the SUV was parked. Sgt. Stiuso then told one of his SNEU officers to run the license plate of the SUV from which § 87(2)(b) and his friend exited. There were additional units who arrived in a marked vehicle but Sgt. Stiuso did not remember the names of the backup officers. While standing by the SUV, Sgt. Stiuso noticed a “very, very strong odor of marijuana” emanating from the SUV. Sgt. Stiuso “did not even look” in the vehicle to check for anything in plain view and neither he nor his officers ever entered or searched the SUV. Sgt. Stiuso and his officers were looking at the balcony to make sure that nothing was thrown at them. While waiting to find out the results of the license plate check, Sgt. Stiuso heard people yelling at him and his officers from the second floor window. Sgt. Stiuso noted that the people yelling were not § 87(2)(b) or his passenger. One of the people on the balcony, who was identified through this investigation as § 87(2)(b) was cursing at the officers and yelling, “That’s my car. Get away from my fucking car.” Sgt. Stiuso told § 87(2)(b) “Well, since this is your car sir can you please come down with your license and registration so that we can identify the car as being yours?” § 87(2)(b) replied that he was not coming down. Sgt. Stiuso again asked § 87(2)(b) to come downstairs

with his license and registration and asked him if he knew who was driving the car. Sgt. Stiuso told § 87(2)(b) that the car would be towed if nobody came downstairs since it was unclear who the car belonged to. § 87(2)(b) replied that it was his brother, § 87(2)(b) who was driving the car and that he was not coming down either.

§ 87(2)(b) eventually came down by himself and Sgt. Stiuso talked to him. § 87(2)(b) showed Sgt. Stiuso his license and registration and explained to Sgt. Stiuso that the SUV was his car but he had lent it to his brother, § 87(2)(b). § 87(2)(b) told Sgt. Stiuso that § 87(2)(b) was a “knucklehead” and he apologized for the way the car was parked. § 87(2)(b) never came downstairs or showed his license. The officer who came to the scene as backup, who was identified through this investigation as PO Thierry Nemorin, issued two summonses to § 87(2)(b) for blocking pedestrian traffic on the sidewalk and one of blocking vehicular traffic. Sgt. Stiuso told § 87(2)(b) that he would have to move the car to a legal parking spot, which § 87(2)(b) did. § 87(2)(b) was very compliant. The results of the SUV’s license plate check indicated that it belonged to somebody but it was not reported stolen.

Sgt. Stiuso stated that neither he nor any of the officers on the scene ever pointed their guns at any of the civilians involved in the above incident. Sgt. Stiuso stated that neither he nor any officers on the scene ever climbed onto the second floor balcony and pointed his gun at the occupants of the 2nd floor apartment. Sgt. Stiuso explained that the area surrounding the incident location is known for drugs.

Officer Statements for February 22, 2007 Incident:

PO Christopher Bramwell was interviewed at the CCRB on June 18, 2007 (enc. 20a-c).

On February 22, 2007, PO Bramwell worked from 5:30pm to 2:05am. PO Bramwell was working Anti-Crime with PO Michael Perez and PO Edgar Gomez. They were in plainclothes and in an unmarked van, number § 87(2)(b). PO Bramwell was in the back seat. PO Gomez was in the passenger seat and PO Perez was the operator of the vehicle.

PO Bramwell had no memo book entries about the incident (19a-c).

On February 22, 2007 at approximately 915 pm, PO Bramwell, PO Gomez and PO Perez were parked on § 87(2)(b) and § 87(2)(b) observing individuals across the street. They all observed a car go through a steady red light and make a right turn onto § 87(2)(b). PO Perez made the decision to stop the car. They put a cherry light on the dashboard to pull the car over. The driver of the car, who was identified through this investigation as § 87(2)(b) pulled over. PO Perez approached the car by the driver’s side and PO Bramwell approached the car by the passenger side. PO Gomez was on the rear driver’s side of the car. PO Bramwell saw a small boy in the backseat without his seatbelt. PO Bramwell did not see what § 87(2)(b) was doing because the windows were tinted. PO Perez asked § 87(2)(b) to get out of the car because he was fidgeting around and the car reeked of marijuana. PO Perez told PO Bramwell that the odor was very strong. PO Bramwell did not smell anything because he had a cold.

PO Perez approached the vehicle and asked § 87(2)(b) for his driver’s license, registration and insurance, which § 87(2)(b) provided. PO Perez told PO Bramwell that he saw § 87(2)(b) fidgeting. PO Bramwell flashed a flashlight in the backseat to see if anything was on the floor near the kid. PO Perez brought the driver to the rear side of the car by PO Gomez and stated, “I saw him making movement under the [driver seat] and I am going to see if he ditched something under the car seat or something like that.”

PO Perez asked § 87(2)(b) if he had anything on him and he frisked him in his waistband and outside his pockets. Nothing was covered. PO Perez did not go into § 87(2)(b)’s pockets. PO Perez searched the car where the driver was sitting; he had a flashlight because it was dark out. PO Bramwell told § 87(2)(b) he looked familiar and he thought it was the guy from a previous incident with the vehicle stop on January 2, 2007. PO Perez said to § 87(2)(b) “Oh you stop for us this time, why did you stop for us this time?” § 87(2)(b) replied, “Oh you guys did it the right way, you had the light.” PO Perez asked § 87(2)(b) why the child was in the car when it reeked of marijuana. § 87(2)(b) said, “The kid got on my nerves, I was just taking him to McDonalds or Wendy’s to get him something to eat.” § 87(2)(b) received two summonses for the child not having a seatbelt on and for disobeying the steady red light. The stop lasted for less than ten minutes. § 87(2)(b) seemed annoyed while the car was being searched but was otherwise cooperative.

PO Edgar Gomez was interviewed at the CCRB on June 15, 2007 (enc. 25a-b).

On February 22, 2007, PO Gomez worked from 5:40pm to 2:05am on February 23, 2007. PO Gomez was assigned to Anti-Crime which entails responding to robberies, burglaries, and assaults in progress. PO Gomez was working with PO Michael Perez and PO Christopher Bramwell in plainclothes. PO Gomez was assigned to an unmarked vehicle, # 8586. PO Gomez was the recorder, PO Perez was the operator, and PO Bramwell was in the rear passenger seat.

PO Gomez had no memo book entries regarding the incident in question (enc. 24a).

PO Gomez, PO Perez, and PO Bramwell were parked on § 87(2)(b), which is a high drug prone location, observing two males when a vehicle sped past where they were parked at a very high speed towards § 87(2)(b). There was a traffic light at the corner of § 87(2)(b) and § 87(2)(b), and at the speed the car was traveling it would not make the light since it was turning from yellow to red. The vehicle ran through the red light and then made a right turn onto § 87(2)(b). PO Perez put on the dash lights and followed the vehicle. The vehicle pulled over immediately. PO Perez and PO Gomez exited their vehicle and PO Perez approached the stopped vehicle on the driver side while PO Gomez approached on the passenger side. PO Bramwell exited the vehicle but PO Gomez did not remember what PO Bramwell was doing other than just standing at the rear of the car that was stopped. All of the vehicle's windows, which were tinted, were rolled up but he did observe a young child in the backseat of the car. PO Gomez did not observe anything else inside the vehicle. PO Perez was the only officer who spoke to the driver of the vehicle, who was identified through this investigation as § 87(2)(b). PO Gomez did not hear any part of the conversation that PO Perez was having with § 87(2)(b). § 87(2)(b) gave his license, registration, and insurance to PO Perez. PO Gomez stayed on the passenger side of § 87(2)(b)'s vehicle until he saw § 87(2)(b) exiting the car a couple of minutes into the car stop. PO Gomez walked around the rear of the vehicle to the driver side for the safety of PO Perez. PO Bramwell remained standing to the rear of § 87(2)(b)'s vehicle but PO Gomez did not know if PO Bramwell was doing anything. PO Gomez did not know how § 87(2)(b) reacted to being asked to exit his vehicle since he was walking around to the driver side. PO Perez asked § 87(2)(b) if he had any weapons or drugs on him or in the vehicle and why he was not wearing a seatbelt. PO Perez told § 87(2)(b) that he smelled marijuana. § 87(2)(b) replied to PO Perez but PO Gomez did not remember what was being said between PO Perez and § 87(2)(b). PO Gomez smelled marijuana from § 87(2)(b)'s vehicle. PO Gomez did not look in the vehicle and could not tell if there were any remnants of marijuana inside § 87(2)(b)'s vehicle. PO Perez frisked § 87(2)(b)'s front and rear pants pockets. PO Gomez saw that § 87(2)(b) did not like being frisked but § 87(2)(b) never said nor did anything to convey his displeasure. The frisk lasted for a few seconds and PO Perez did not recover anything as a result of the frisk. PO Gomez stated that PO Perez never searched § 87(2)(b). PO Gomez saw a cigar on the center console of § 87(2)(b)'s vehicle as did PO Perez. PO Gomez suspected that the cigar may have caused the vehicle to smell like marijuana. § 87(2)(b) walked to the rear of his car on the driver side with PO Gomez and PO Bramwell. PO Perez proceeded to search the front driver side of § 87(2)(b)'s vehicle. PO Perez searched the front driver seat and the general console/dashboard of § 87(2)(b)'s vehicle. PO Gomez did not know if PO Perez searched under any of the front seats or in the glove compartment. There was nothing recovered as a result of the vehicle search, which was limited to only the front part of § 87(2)(b)'s car. § 87(2)(b) never said anything while his vehicle was being searched. PO Perez issued § 87(2)(b) a summons for passing a steady red light. PO Gomez stated that PO Perez may have completed a stop and frisk report for § 87(2)(b). PO Gomez did not see § 87(2)(b) engaging in any suspicious conduct.

Summonses issued to § 87(2)(b) by PO Michael Perez (enc. 21a):

Summons number § 87(2)(b) was for disobeying a steady red light and summons number § 87(2)(b) was for not having a safety seat for a child under seven years old.

PO Michael Perez was interviewed at the CCRB on June 4, 2007 (enc. 23a-c).

On February 22, 2007, PO Perez worked from 5:30pm to 2:05 am on February 23, 2007. PO Perez was assigned to the 110th Precinct's Anti-Crime Team, which entails patrolling the precinct in plainclothes out of unmarked vehicles. PO Perez was working with PO Edgar Gomez, and PO Christopher Bramwell in plainclothes. PO Perez was assigned to an unmarked red Ford van, # § 87(2)(b). PO Perez was the operator, PO Gomez was the recorder, and PO Bramwell was in the rear seat.

PO Perez read his memo book entries regarding the incident (enc. 22a-c):

2015: § 87(2)(b) Red Light
§ 87(2)(b) Seat Safety Child under seven

Child stated and motorist stated that child was § 87(2)(b)
You gave me two tickets; I'll see you in court

PO Perez, PO Gomez, and PO Bramwell were double parked in the vicinity of § 87(2)(b) and § 87(2)(b) observing an individual on § 87(2)(b) for a possible narcotics transaction when PO Perez saw a BMW X5 run a steady red light in front of them at the intersection of § 87(2)(b) and § 87(2)(b). The vehicle made no attempts to slow down or stop as it was approaching the traffic light. PO Perez told PO Gomez and PO Bramwell that he saw the vehicle run the red light. PO Perez put the cars' red lights on, and pursued the vehicle for half a block until § 87(2)(b). The vehicle pulled over immediately. PO Perez may have run the license plate of the vehicle but did not wait for the results before he approached on the driver side of the vehicle. PO Perez observed the driver, who was identified through this investigation as § 87(2)(b) reaching under the driver seat. PO Perez was by the rear door of the driver seat and could see § 87(2)(b) in the driver's side mirror of the vehicle and when he approached the driver side he saw § 87(2)(b) bent over and reaching under his seat. § 87(2)(b) immediately "popped up." PO Perez noticed that § 87(2)(b)'s vehicle, which had all the windows rolled all the way down, had a strong odor of marijuana as he approached the vehicle. PO Perez suspected that § 87(2)(b) may have had a weapon or was hiding drugs so PO Perez asked § 87(2)(b) to exit the vehicle, which § 87(2)(b) did. PO Perez did not recognize § 87(2)(b) at that point. PO Perez asked § 87(2)(b) what he had under the driver seat. § 87(2)(b) replied that he was not doing anything. PO Perez asked § 87(2)(b) if he had anything on him that he was not supposed to have and when § 87(2)(b) replied "no," PO Perez frisked § 87(2)(b)'s waistband and stated that he may have frisked § 87(2)(b)'s front pants pockets. PO Perez never searched § 87(2)(b)'s pockets. PO Gomez and PO Bramwell never frisked or searched § 87(2)(b). The frisk lasted for less than a minute.

PO Perez looked underneath the driver's seat of § 87(2)(b)'s vehicle, and the crevices to the sides of the driver's seat but there was nothing. PO Perez never searched the glove compartment, opened the center console, or searched any other part of § 87(2)(b)'s vehicle. The interior lights of § 87(2)(b)'s vehicle, the ones that turn on when the doors are open, may have been on. PO Perez looked into the rear seat of the car from where he was in the front and saw a young boy, who was identified through this investigation as § 87(2)(b) in the back seat of § 87(2)(b)'s vehicle. § 87(2)(b) was not secured with a seatbelt or with any special child seats. The vehicle search lasted for less than a minute and § 87(2)(b) was standing to the rear of the car the entire time. PO Gomez and PO Bramwell were talking to § 87(2)(b) but PO Perez did not hear what they were saying. PO Perez did not remember if § 87(2)(b) said anything while the vehicle was being searched. PO Perez saw a "Phillie" cigar on the dashboard of § 87(2)(b)'s car but the package was not open. PO Perez explained that people take the insides out of "Phillies" and use it to roll marijuana to smoke. Neither PO Bramwell nor PO Gomez searched § 87(2)(b)'s vehicle.

§ 87(2)(b) told PO Perez, "Oh, you guys don't remember me?" PO Gomez replied, "Oh yeah, this is the kid from § 87(2)(b)]." PO Perez asked § 87(2)(b) why he ran through the red light and § 87(2)(b) replied, "Oh, you guys were blocking the street and I had to get past." PO Perez told § 87(2)(b) that he ran a red light and § 87(2)(b) gave the same response. PO Perez asked § 87(2)(b) for his license, registration, and insurance, which § 87(2)(b) readily provided. PO Perez asked § 87(2)(b) how old § 87(2)(b) was and § 87(2)(b) replied that the boy was § 87(2)(b). PO Perez asked § 87(2)(b) if he was smoking marijuana in his car and § 87(2)(b) replied that the car always smells like marijuana. When PO Perez explained to § 87(2)(b) that § 87(2)(b) was smelling the marijuana, § 87(2)(b) replied that he could not get the odor of marijuana out of the car. § 87(2)(b) was crying in the backseat so PO Perez asked § 87(2)(b) why the child was crying. § 87(2)(b) replied that he cannot be with § 87(2)(b) and PO Perez asked him why he was with the child if he did not want to be with him. § 87(2)(b) replied that he was taking § 87(2)(b) home. § 87(2)(b) told PO Perez, "Oh now you guys did it the right way." PO Perez asked § 87(2)(b) what he was talking about and § 87(2)(b) replied that the last time he was stopped by all three of them they did not stop him the right way. § 87(2)(b) explained that they put on the red light and stopped him properly. PO Perez asked § 87(2)(b) how he knew they were officers since they were dressed in plainclothes and were driving an unmarked car. § 87(2)(b) replied that he saw their lights when they stopped him. § 87(2)(b) told PO Perez that he was not there for the January 2, 2007 incident but pointed to PO Gomez and PO Bramwell and stated that they were part of the January 2, 2007 incident. § 87(2)(b) asked why PO Perez and his partners were bothering him. PO Perez replied that he did not know who he was when he pulled him over for running a red light. PO Perez issued § 87(2)(b) a summons for running a red light and for not having a child seat for § 87(2)(b). As PO Perez was walking back to his

car, § 87(2)(b) said, “Oh, you guys gave me two summonses. I’m going to see you in court. I guess you guys really don’t like me.” PO Perez got into his vehicle with PO Gomez and PO Bramwell and resumed patrol.

PO Vivian Alberty, PO Ronak Patel, PO Paul Scocca, and PO Michael Granahan:

§ 87(2)(g)

NYPD Documents:

According to the 110th Precinct’s finalized roll call for Tour 3 for January 2, 2007 (enc. 29a-k), Sgt. William Stiuso was the SNEU supervisor and PO Michael Perez, PO Edgar Gomez, PO Christopher Bramwell, PO Ronak Patel, PO Vivian Alberty, PO Michael Granahan, and PO Paul Scocca were assigned to SNEU.

According to the 110th Precinct’s finalized roll call for Tour 3 for February 22, 2007 (enc. 30a-p), PO Michael Perez, PO Edgar Gomez, and PO Christopher Bramwell were assigned to Anti-Crime and they were working during Tour 2.

Disposition of Summonses:

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian’s CCRB History (enc. 6a):

§ 87(2)(b) has no CCRB complaint history.

Officer’s CCRB History:

No allegations have been substantiated against Sgt. William Stiuso and PO Michael Perez.

Conclusions and Recommendations

Disputed/Undisputed Facts:

It is undisputed the position the car was parked in was blocking the sidewalk and that officers entered § 87(2)(b) on January 2, 2007 after seeing § 87(2)(b) and § 87(2)(b) run inside the building. § 87(2)(b)

It is undisputed that § 87(2)(b)’s car was stopped, that he was frisked, and that his vehicle was searched on February 22, 2007. § 87(2)(g)

Credibility Analysis:

§ 87(2)(g)

§ 87(2)(g)

[REDACTED]

[REDACTED]

Allegations Not Pleased:

§ 87(2)(g)

[REDACTED]

[REDACTED]

Allegation (A): On January 2, 2007, Sgt. William Stiuso authorized the entry into § 87(2)(b) Corona, NY.

According to Barry Kamins's of *Search and Seizure*, "New York Courts have held that there is no expectation of privacy in an area of a residential building where access to the public is relatively uncontrolled. If strangers, guests, invitees, etc. have easy access to a specific area, there can be no reasonable expectation of privacy, and the police have the same right as the public to enter the area (enc. 1a)." § 87(2)(g)

[REDACTED] It is therefore recommended that Allegation (A) be exonerated.

Allegation (B): On January 2, 2007, PO Michael Perez pointed his gun at § 87(2)(b)

[REDACTED] alleged that PO Perez climbed onto the 2nd Floor balcony and pointed his gun at him and the other people who were standing in front of the window. PO Perez denied the allegation and Sgt. Stiuso, PO Bramwell, and PO Perez all stated that no such thing occurred. § 87(2)(g)

[REDACTED] it is recommended that Allegation (C) be unfounded.

Allegation (C): On February 22, 2007, PO Michael Perez frisked § 87(2)(b)

According to Barry Kamins's *Search and Seizure*, "Thus, if the police have a reasonable basis to fear for their safety, they may take appropriate and reasonable steps to ensure that a driver is unarmed before they question him (enc.2a)." Kamins explains that if an officer observes actions indicating that an individual might have a weapon, such as furtively placing something underneath a car seat, these "reasonable steps" may include a frisk of the individual and a limited search of the vehicle's "grabbable area," which is defined as "the space within the defendant's immediate reach... the area beneath the driver's seat and the area next to the driver's seat (enc. 2b)." PO Perez stated that he observed § 87(2)(b) reaching under the driver's seat as he was walking to the driver's side of the vehicle and when he came was close to the front driver's side he saw § 87(2)(b) "popped up." PO Perez suspected that § 87(2)(b) may have had a weapon or was reaching for something so he asked § 87(2)(b) to step out of the vehicle and performed a frisk to verify that he was not carrying any weapons. Although PO Gomez and PO Bramwell did not see § 87(2)(b) reaching under his seat, PO Bramwell stated that PO Perez told him that he saw § 87(2)(b) reaching under his seat. PO Perez also stated that he searched the area of the vehicle that he saw § 87(2)(b) reaching to make sure that there was no weapons or contraband in the vehicle. § 87(2)(g)

It is recommended that Allegation (C) be exonerated.

Allegation (D): On February 22, 2007, PO Michael Perez searched § 87(2)(b)

§ 87(2)(b) alleged that PO Perez searched his pants pockets, which PO Perez denied. Neither PO Gomez nor PO Bramwell saw PO Perez search § 87(2)(b) § 87(2)(g) it is recommended that Allegation (F) be unsubstantiated.

Allegation (E): On February 22, 2007, PO Michael Perez searched the car in which § 87(2)(b) § 87(2)(b) was an occupant

§ 87(2)(g) According to Barry Kamins's *Search and Seizure*, "If the officer smells the distinctive odor of drugs, he would also have probable cause to search the entire vehicle (enc. 3a)." It is therefore recommended that Allegation (E) be exonerated.

Investigator:
Samrawit Tadesse

Date:

Supervisor:
Stephen Poellot

Date:

Reviewed by:
Jessica Long

Date:

Reviewed by:

Date: